

# Terms of Service of CJ The Juggler

This document governs

- the use of our website, and,
- any other related agreement or legal relationship with us in a legally binding way.

You must read this document carefully.

Our website is provided by: CJ Harvey

**Contact email: [cjthejuggler@gmail.com](mailto:cjthejuggler@gmail.com)**

This document was generated with the use of the terms of service generator.

## TERMS OF USE

Unless stated otherwise, the terms in this section apply generally when using our website.

Specific or additional conditions may apply in certain situations and are noted in this document.

### Account registration

To use the service, you can register or create an account by providing complete and truthful information. You can also use the service without an account, but this might limit some features.

You are responsible for keeping your login details confidential and must choose passwords that meet the highest standards of strength as allowed by our website.

By registering, you agree to take full responsibility for all activities under your username and password.

You must immediately inform us using the contact details in this document if you believe your personal information, account, or login details have been violated, disclosed, or stolen.

### Content on the website

Unless otherwise noted, all content on our website is owned or provided by us or our licensors.

We do our best to ensure the content on our website complies with all laws and respects third-party rights. However, this may not always be achievable.

If you believe your rights are being infringed, without prejudice to any legal prerogatives to enforce your rights, please report any issues using the contact details provided in this document.

### **Rights regarding content on our website - All rights reserved**

We hold and reserve all intellectual property rights for all content.

You may not use such content in any way that is not necessary or implied for the proper use of the service.

Specifically, but without limitation, you may not copy, download, share (beyond the limits mentioned below), modify, translate, transform, publish, transmit, sell, sublicense, edit, transfer, assign to third parties, or create derivative works from the content on our website. You also cannot allow any third party to do so through your account or device, even unknowingly.

Where explicitly stated, you may download, copy, and share some content from our website for personal and non-commercial use, provided you correctly implement copyright and other required attributions.

Any statutory limitations or exceptions to copyright remain unaffected.

### **Access to external resources**

Through our website, you may access external resources provided by third parties. You acknowledge and accept that we have no control over these resources and are not responsible for their content or availability.

Conditions for third-party resources, including any rights granted in their content, are governed by those third parties' terms and conditions or by applicable law.

## **Acceptable use**

Our website and service may only be used within the scope of what is provided for, under these terms and applicable law.

You are solely responsible for ensuring your use of our website and service does not violate any laws, regulations, or third-party rights.

We reserve the right to protect our interests by denying you access to our website or service, terminating contracts, and reporting any misconduct to the appropriate authorities if you are involved in or suspected of the following:

- violating laws, regulations, or these terms;
- infringing on third-party rights;
- significantly impairing our legitimate interests;
- offending us or any third party.

## **Terms and Conditions**

Key Definitions:

- "CJTJ": CJ The Juggler
- "Client": You, the party engaging CJTJ's services
- "PLI": Public Liability Insurance

## **Authorization**

1.1 This contract becomes effective immediately upon acceptance of the booking by the Client and CJTJ, which can be communicated through oral, electronic, or written confirmation.

1.2 A signature or a returned copy alone does not serve to legitimize the contract, booking, or terms.

## **Amendments to Contract Details**

2.1 Any changes to the originally agreed details may result in alterations to the total price. Such changes must be made in writing.

2.2 All charges must be agreed upon in advance of the event. No alterations to the agreed price will be accepted on the event day or in the days following the event.

### **Event Delays and Late Finish Fees**

3.1 Any change to the event's scheduled finish time (as stated in the contract) must be mutually agreed upon in writing by both parties. A unilateral change is not permitted.

3.2 If the event runs over by more than one hour past the agreed finish time, a late fee will be added at the rate of 10% of the total fee for every additional half hour.

3.3 CJTJ reserves the right to refuse to continue the performance beyond the agreed finish time without penalty to the Client.

### **Extended Performance Time Fees**

4.1 Any request to extend the agreed performance time (as outlined in the booking contract) must be mutually agreed upon in writing by both the Client and CJTJ.

4.2 If the event time is extended on the day, an additional fee of 20% of the current total price will be applied for every half hour of extension.

4.3 CJTJ has the right to refuse any request for an extended performance without penalty.

### **Fees and Expenses**

5.1 The agreed price must be determined between CJTJ and the Client before any further steps are taken towards the event.

5.2 An invoice will be issued starting from the event date and will be included in the initial communication to ensure transparency regarding the costs.

5.3 Payment of the invoice is due within 4 weeks from the invoice date.

5.4 If payments are not made within the four-week time frame then late fees will begin to accrue on the amount specified. On the first day of the late payment, you will receive an email making sure that there are no troubles with payment and if things can be settled there and then they will. If not, daily emails will be sent with new accumulated total will be sent.

5.4.1 For the first 6 days the payment is late there is a compound 1.5% increase. Once it reaches day 7 the accumulated total is lost and a 15% increase is added. From then the new total including the 15% will gain a compound 3%. This happens repeatedly until the payment is made.

5.5 If you are aware that you will be unable to make payment within the four-week period, you must notify CJTJ within the first two weeks to arrange a payment plan for the full amount. Failure to do so will result in the application of clause 5.4.

## **Cancellation by Client**

6.1 Upon receipt of this contract, the Client must review the terms and conditions. If the Client does not wish to be bound by these terms, they must notify CJTJ in writing within 7 days of receipt to request the cancellation of the contract.

6.2 Should the Client wish to cancel the contract; they must provide written notice to CJTJ at least 30 days prior to the event date. Cancellations made after this 30-day period will result in a liability for 25% of the agreed total.

## **CJTJ's Responsibilities**

7.1 Upon sending the contract, CJTJ will provide the invoice for the event, relevant risk assessments, and Public Liability Insurance (PLI) documentation.

7.2 CJTJ will deliver the agreed services as outlined in this contract.

7.3 CJTJ will carry a basic first aid kit during the performance.

7.3.1 If any crew or fire marshals are involved (as applicable), at least one will be a certified first aider to ensure the safety of the crew and performers.

7.3.2 The first aid kit will meet current UK small business regulations and will include a burns kit when fire performances are involved.

7.4 In the case of a fire performance, CJTJ will ensure that at least two trained fire marshals are present in the immediate performance area to ensure safety for both the audience and the performers.

## **GUARANTEES**

### **Legal guarantee of conformity for goods under EU law**

We guarantee the conformity of goods sold to European consumers for at least 2 years from delivery. This guarantee applies to goods on our website according to the laws of your country.

The laws of your country may grant you broader rights regarding legal guarantees of conformity.

### **Conformity to contract for consumers in the United Kingdom**

UK consumers have the right to receive goods that conform to the contract.

## **LIABILITY AND INDEMNIFICATION**

We limit our liability as much as legally allowed when executing agreements with you. This means our responsibility for damages is reduced to the maximum extent permitted by law unless explicitly stated otherwise or agreed upon with you.

## **Indemnification**

You agree to indemnify us and our affiliates, officers, directors, and employees from any claims or demands made by third parties due to or in connection with any culpable violation of these terms or third-party rights related to your use of the service to the extent allowed by law.

## **Limitation of liability**

Unless explicitly stated otherwise and subject to applicable law, you cannot claim damages against us (or any individual or entity acting on our behalf).

However, this exclusion does not apply to damages affecting life, health, or physical integrity, damages arising from the breach of significant contractual obligations (such as those necessary to fulfill the contract's purpose), and/or damages resulting from intentional or gross negligence, provided that our website has been used appropriately and correctly by you.

Unless damages stem from intentional or gross negligence, or they impact life, health, or physical integrity, our liability is limited to typical and foreseeable damages at the time the contract was entered into.

## **COMMON PROVISIONS**

### **No waiver**

Our failure to assert any right or provision under these terms does not waive that right or provision. No waiver will constitute a continuing waiver of such term or any other term.

### **Service interruption**

To maintain the best service level, we reserve the right to interrupt the service for maintenance, updates, or other changes, with appropriate notification.

We may suspend or discontinue the service within legal limits. If discontinued, we will assist you in withdrawing personal data and respect your rights regarding continued product use and compensation under applicable law.

The service may be unavailable due to events beyond our reasonable control, such as infrastructure breakdowns or blackouts.

### **Service reselling**

You may not reproduce, duplicate, copy, sell, or exploit any part of our website or its service without our express written permission, granted either directly or through a legitimate reselling programme.

## **Privacy policy**

For information on the use of personal data, you can refer to our website's privacy policy.

## **Intellectual property rights**

Without prejudice to any more specific provisions in these terms, all intellectual property rights associated with our website, including copyrights, trademark rights, patent rights, and design rights, are exclusively owned by us or our licensors. These rights are protected by applicable laws and international treaties concerning intellectual property.

All trademarks, whether nominal or figurative, and any other marks, trade names, service marks, word marks, illustrations, images, or logos associated with our website, are and remain the exclusive property of us or our licensors. These are also protected by applicable laws and international treaties related to intellectual property.

## **Changes to the terms**

We reserve the right to modify these terms at any time, informing you of any changes.

Such changes will only affect the relationship with you from the date communicated onwards.

Your continued use of the service will signify your acceptance of the revised terms. If you do not wish to be bound by the changes, you must stop using the service and terminate the agreement.

The applicable previous version will govern the relationship prior to your acceptance. You can obtain any previous version from us.

If legally required, we will notify you in advance of when the modified terms will take effect.

## **Assignment of contract**

We reserve the right to transfer, assign, dispose of by novation, or subcontract any or all rights or obligations under these terms, considering your legitimate interests. Provisions about changes to these terms will apply accordingly.

You cannot assign or transfer your rights or obligations under these terms without our written permission.

## **Contact**

All communications regarding the use of our website must be sent using the contact information provided in this document.

## **Severability**

Invalidity or unenforceability of any provision under applicable law will not affect the validity of other provisions, which will remain in full force and effect.

## **Governing law**

These terms are governed by the law of the place where we are based, as outlined in the relevant section of this document, without regard to conflict of laws principles.

## **Prevalence of national law**

However, regardless of the above, if the law of the country that you are based on provides for higher applicable consumer protection standards, such higher standards will prevail.

## **Venue of jurisdiction**

The jurisdiction over any controversy related to these terms lies with the courts of the place where we are based, as outlined in the relevant section of this document.

## **Exception for consumers in Europe**

However, regardless of the above, this does not apply if you qualify as a European consumer or if you are a consumer based in the United Kingdom, Switzerland, Norway, or Iceland.

## **UK consumers**

If you are a consumer based in England and Wales, you may bring legal proceedings related to these terms in the English and Welsh courts. If you are a consumer based in Scotland, you may bring legal proceedings in either the Scottish or the English courts. If you are a consumer based in Northern Ireland, you may bring legal proceedings in either the Northern Irish or the English courts.

## **DISPUTE RESOLUTION**

### **Online dispute resolution for consumers**

The European Commission has set up an online platform for alternative dispute resolution, providing an out-of-court solution for resolving disputes arising from online sale and service contracts.

Therefore, European consumers or consumers based in Norway, Iceland, or Liechtenstein can use this platform to settle disputes arising from online contracts. You can access the platform [via the following link](#).